

**BEFORE THE
FEDERAL MARITIME COMMISSION**

WAN HAI LINES, LTD. and WAN HAI LINES
(USA) LTD. – POSSIBLE VIOLATIONS OF 46
U.S.C., §41102(c)

FMC Docket No. 21-16

RESPONDENTS' MOTION FOR AMENDMENT OF THE SCHEDULING ORDER

Pursuant to 46 C.F.R. §502.69, Respondents Wan Hai Lines, Ltd. and Wan Hai Lines (USA) Ltd. hereby move for a two week extension of all dates in the schedule in this proceeding to allow for additional time to schedule depositions and complete discovery. The parties have worked diligently to complete discovery and to schedule all necessary depositions within the original schedule. However, they have not been able to do so due to challenges finding acceptable dates for all of the proposed deponents. Especially in light of the fact that several of the deponents were also deposed in the FMC Docket No. 21-09, the parties have sought to balance the need for expeditious conduct of this proceeding with the burden placed on the deponents by testifying and producing documents in multiple proceedings. A brief extension of the period to complete depositions and discovery will allow the parties to better accommodate the schedules of the deponents and to reduce this burden.

Accordingly, Respondents hereby request a two-week extension of the dates for completion of deposition and to serve discovery requests and that the schedule of proceedings be commensurately amended as follows:

April 4, 2022	Depositions to Conclude;
April 7, 2022	Last Day to Serve Discovery Requests;
April 14, 2022	End of Discovery;
May 5, 2022	BOE's brief, findings of fact, and appendix deadline;
May 26, 2022	Respondents' brief, findings of fact, appendix, and response deadline;
June 3, 2022	BOE's reply brief deadline.

If granted, the modest extension should not adversely impact the expeditious conduct of business in this proceeding. Pursuant to 46 C.F.R. §502.71, the undersigned has conferred with the Bureau of Enforcement regarding this request, and has been authorized to represent that the Bureau of Enforcement has no objections to the requested extension.¹

Respectfully submitted,



Joshua P. Stein
Wayne R. Rohde
COZEN O'CONNOR
1200 Nineteenth Street, NW
Suite 300
Washington, DC 20036
(202) 463-2504

Dated: March 21, 2022

¹ BOE notes that in addition to some deponents also being witnesses in 21-09, several are witnesses who are not parties to this litigation, and BOE shares counsel's concern with regard to overburdening deponents.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 21st day of March, 2022, the foregoing Motion for
Amendment of the Scheduling Order was served via electronic mail on:

Benjamin Trogdon, Esq. (btrogdon@fmc.gov)
Maryanne Mundy, Esq. (mmundy@fmc.gov)
Serena Tang, Esq. (stang@fmc.gov)

A handwritten signature in black ink, appearing to read "Josh P. Stein", written over a horizontal line.

Joshua P. Stein